PRIVILEGED AND CONFIDENTIAL

ADVICE ON PROSPECTS

To: Ms Ada Okafor, General Counsel, Northwind Trading Limited
From: Kavi Iyer, Senior Associate, Thorne Vaux LLP
Date: 28 March 2026
Matter: NTL-2026-0114

1. SUMMARY

Northwind has a strong claim that Calder Shipping AG repudiated the charterparty by withdrawing MV Aurelia on 19 January 2026. We assess prospects on liability at 70 to 75 per cent. Quantum is less certain.

2. THE WITHDRAWAL

Clause 11(a) entitles owners to withdraw for non-payment of hire, but only after three banking days' notice. Calder gave notice on 16 January 2026 and withdrew on 19 January 2026. Given the intervening weekend that is fewer than three banking days.

3. THE OFF-HIRE DISPUTE

The engine logs disclosed on 22 March 2026 record the main engine inoperable from 03:40 on 2 January until 18:15 on 13 January, which supports Northwind. The surveyor's report by Halvorsen Marine reaches the opposite conclusion but appears not to have had the logs.

4. AUTHORITY

We rely on The Aquitaine [2019] EWHC 2211 (Comm) on the construction of clause 11 notice periods.

5. QUANTUM

The charter rate was USD 18,500 per day against a market rate averaging USD 24,200 over the remaining 214 days, giving a prima facie loss near USD 1.22 million before mitigation. Northwind fixed the MV Sirocco on 4 February 2026.

Kavi Iyer, Senior Associate